

‘He kept his innocency, when others let theirs go ; when him-
 ‘self and Common-wealth were alike deserted, which raises his
 ‘merit to a higher pitch : For to be honest when every body else is
 ‘honest, when honesty is in fashion, and is Trump (as I may say)
 ‘is nothing so meritorious : but to stand alone in the breach, to own
 ‘honesty when others dare not do it, cannot be sufficiently applau-
 ‘ded, nor sufficiently rewarded. And that did this good old man
 ‘do, in a time of general desertion, he preserved himself pure and
 ‘untainted.

My Lords , The House of Commons are therefore Suiters unto
 ‘your Lordships, to joyn with them in the representation of this
 ‘good mans case unto his Majesty, and humbly to beseech his Majesty
 ‘to be so good and gracious unto him, as to give him such honour,
 ‘(the quality of this case considered) as may be a noble mark of
 ‘Sovereign Grace and Favour, to remain to him and his posterity,
 ‘and may be in some measure a proportionable compensation for the
 ‘the great loss he hath with so much patience and resolution
 ‘sustained.

The Lord Andever, concerning the Star-Chamber.

My Lords,

‘Since your Lordships have already looked so far into Priviledges
 ‘of Peers, as to make a strict Inquisition upon Foreign Honors :
 ‘let us not destroy that among our selves, which we desire to pre-
 ‘serve from Strangers.

The Lord
 Andever, Con-
 cerning the
 Star-Chamber.

‘And if this Grievance I shall move against, have slept till now ;
 ‘it is very considerable, lest custom make it every day more appa-
 ‘rent than other : your Lordships very well know, there was a Sta-
 ‘tute framed 3 Hen. 7. authorizing the Chancellor, Treasurer and
 ‘Privy Seal, and the two Chief Justices, calling to them one Bishop,
 ‘and a Temporal Lord of the Kings Council, to receive Complaints
 ‘upon Bill of Information, and Cite such parties to appear as stand
 ‘accused of any Misdemeanour ; and this was the Infancy of the
 ‘Star-Chamber : but afterwards the Star-Chamber was by Cardinal
 ‘Woolsey 8 H. 8. raised to mans estate : from whence (being now
 ‘altogether unlimited) it is grown a Monster, and will hourly
 ‘produce worse effects, unless it be reduced by that hand which laid
 ‘the foundation : for the Statutes that are ratified by Parliament, ad-
 ‘mit of no other than a repeal.

‘Therefore I offer humbly unto your Lordships these ensuing Rea-
 ‘sons, why it should be repealed.

‘First, The very words of the Statute clearly shew, that it was
 ‘a needless Institution ; for it sayes, They who are to Judge, can
 ‘proceed with no Delinquent otherwise than if he were convicted
 ‘of the same crime by due process of Law.

‘And do your Lordships hold this a rational Court, that sends
 ‘us to the Law, and calls us to the Law, and calls us back from
 ‘it again ?

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‘Secondly,

An. 1640.

' Secondly, Divers Judicatories confound one another, & in *peffima republica plurime leges.*

' The second Reason is, from Circumstance, or rather à *consuetudine*; and of this there are many examples both domestick and foreign: but more particularly, by the Parliaments of France abbreviated into a standing Committee by Philip the King, and continued according to his institution until Lewis the Eleventh came to the Crown, who being a Subtil Prince, buried the Volume in the Epitome: for to this day, when ever the three Estates are called, either at the death of the old King, or to Crown the new, it is a common Proverb, *Allons voire le van des estates.* My Lords, Arbitrary Judgements destroy the Common Laws, and in them the two great Charters of the Kingdom; which being once lost, we have nothing left but the Name of Liberty.

' Then the last Reason is, (though it was the first Cause of my standing up) the great Eclipse it hath ever been to the whole Nobility; for who are so frequently vexed there, as Peers and Noblemen? and notwithstanding their Appeal to this Assembly is ever good, whilst that famous Law of the 4 Ed. 3. remains in force for the holding of a Parliament once a year, or more if occasion require: yet who durst a year ago mention such a Statute, without the incurring the danger of Mr. * *Kilverts* persecution? Therefore I shall humbly move your Lordships, that a select Committee of a few may be named to consider of the Act of Parliament it self, and if they shall think it of as great prejudice as I do, that then the House of Commons in the most usual manner may be made acquainted with it either by Bill or Conference; who also happily think it a burthen to the Subject; and so when the whole body of Parliament shall joyn in one Supplication, I am confident his Majesty will desire that nothing shall remain in force, which his people do not willingly obey.

* An Informer and Prosecutor in that Court.

THe Barons of the Exchequer being charged for not doing Justice to Mr. *Rolls* and other Merchants of London, who had their Goods seised upon in November 4 Car. by the Officers of the Custom-House, for refusing to pay the Subsidy of *Tonnage and Poundage.* And having sued out a Writ of *Replevin* directed to the Sheriffs of London, the Court awarded an Injunction, commanding the Sheriff not to execute the same, and denyed restitution.

The Offences of these Judges therein at the Delivery of their Impeachment to the House of Lords, were aggravated as to this case by Mr. *Edward Hide*, who spake to this effect:

My Lords,

Mr. *Hide's* Speech, concerning the Judges, *Tonnage and Poundage,* &c.

' **T**Here cannot be a greater Instance of a Sick and Languishing Common-wealth, than the business of this day. Good God! How have the guilty these late years been punished, when the Judges themselves have been Delinquents. 'Tis no such marvail, that an Irregular, Extravagant, Arbitrary Power, like a Torrent, hath broke in upon us, when our Banks and our Bulwarks, the Laws, were

‘were in the Custody of such Persons. Men who had lost their
 ‘Innocence, could not preserve their courage: nor could we look,
 ‘that they who had so visibly undone us, themselves should have the
 ‘vertue or credit, to rescue us from the oppression of other men.
 ‘’Twas said by one, who alwayes spoke excellently, That the twelve
 ‘Judges were like the twelve Lyons under the Throne of *Solo-mo-n*:
 ‘under the Throne in obedience, but yet Lyons. Your Lordships
 ‘shall this day hear of Six, who (be they what they will be else)
 ‘were no Lyons, who upon Vulgar fears delivered up the precious
 ‘Forts they were trusted with, almost without assault; and in a
 ‘tame easie trance of Flattery and Servitude, lost and forfeited
 ‘(shamefully forfeited) that reputation, awe and reverence, which
 ‘the Wisdom, Courage, and Gravity of their Venerable Prede-
 ‘cessors had contracted and fastened to the Places they now hold:
 ‘And even rendred that Study and Profession (which in all Ages
 ‘hath been, and I hope now shall be of an honourable estimation)
 ‘so contemptible and vile, that had not this blessed day come, all
 ‘men would have had that quarrell to the Law it self, which *Ma-
 ‘rius* had to the Greek Tongue, who thought it a Mockery, for a
 ‘man to learn that Language, the Masters whereof lived in bondage
 ‘under others. And I appeal to these unhappy Gentlemen them-
 ‘selves, with what a strange negligence, scorn and indignation the
 ‘Faces of all men, even of the meanest, have been directed towards
 ‘them, since (to call it no worse) that Fatal Declension of their
 ‘understandings in those Judgements, of which they stand here
 ‘charged before your Lordships. But, *my Lords*, the work of this
 ‘day is the greatest instance of a growing and thriving Common-
 ‘wealth too: and is as the dawning of a fair and lasting day of
 ‘happines to this Kingdom: ’tis in your Lordships Power (and I
 ‘am sure ’tis in your Lordships Will) to restore the dejected broken
 ‘people of this Island to their former Joy and Security, the succes-
 ‘sors of these men to their old Priviledge and Veneration, & *se-
 ‘pultas prope leges revocare*.

‘As for that Presumptuous Decree against Mr. *Rolls* and others,
 ‘and in truth, whatsoever Gloss they put upon it, it is no other than
 ‘a plain Grant of the Subsidy of *Tonnage* and *Poundage* to his Majesty
 ‘upon all Merchandize. After their Goods seized for Non-Payment
 ‘of that pretended Duty the Proprietors brought *Replevins* (which
 ‘is the Natural and Genuine Remedy appointed by Law in case of
 ‘Property, and grounded upon Property) the Court awards an
 ‘Injunction to stay these *Replevins*, the Goods were in the Kings
 ‘Possession, and no *Replevin* would lye against the King.

‘Truly, *My Lords*, The Injustice here is not so scandalous as the
 ‘Fraud: we all know, a *Replevin* (as in no other Suit) lyes against
 ‘the King, if the Goods be in his own hands.

‘Here they found a Right, a known and unquestionable Right;
 ‘yet instead of assisting, took away the Remedy to preserve that
 ‘Right. What shall we call these Judges?

‘*My Lords*, In this Argument I am not willing to say much: ’tis
 ‘enough that your Lordships know, *Tonnage* and *Poundage* is not a
 ‘Duty to the Crown, but a Subsidy, and so granted in *subsidiū* some

*Tonnage and
 Poundage.*

An. 1640.

* This Gentleman was not at Oxford in time of War, as the Lord Falkland, &c. were.

Mr Rous part of his Speech concerning Dr. Mainwaring and the Altar Clergy.

'times *pro una vice tantum*; sometimes for years, and then ceased
'when the time did expire; that when it was first granted for life,
'it was with this Clause, *Ita quod non trahatur in Exemplum futuris*
'*Regibus*: but 'tis abundantly enough known, that his Sacred Ma-
'jesty cannot be tainted with the Advices and Judgements of these
'men, but looks on this Duty singly as the meer affection and
'bounty of his Subjects, the which no doubt he shall never want.

* Mr Rous part of his Speech concerning Dr. Mainwaring and the Altar Clergy.

Y Our Lordships have heard of a great Design to bring in Pope-
'ry, you have heard of Armies of Soldiers, and particularly
'of the Popish *Irish* Army, the Burthen and Complaint of the Com-
'mons. But there is another Army not so much spoken of, and
'that is an Army of Priests: for since Altars came in, they delight
'to be called Priests. It is a saying of Gregory the Great, that when
'*Antichrist* comes, *Preparatus est exercitus Sacerdotum*; There is an
'Army of Priests ready to receive him. This is fulfilled in our time:
'for certainly this Army of Priests doth many wayes advance the
'Design and Plot of Popery. A first is, by the subversion of our
'Laws and Government: our Laws and Popery cannot stand to-
'gether; but either Popery must overthrow our Laws, or our
'Laws must overthrow Popery: But to overthrow our Laws, they
'must overthrow Parliaments, and to overthrow Parliaments they
'must overthrow Property; they must bring the Subjects Goods to
'be arbitrarily disposed, that so there may be no need of Parliaments:
'this hath been done by Doctor *Mainwaring*, (whom we find want-
'ing yet not in the Seats, but in the Barr of the Lords House.)

'A second way by which this Army of Priests advanceth the Po-
'pish Design, is the way of Treaty. This hath been both by Wri-
'tings and Conference. *Sancta Clara* himself on his part, labours to
'bring the Articles of our Church to Popery; and some of our side
'strive to meet him in that way. We have a Testimony that the
'Arch-Priest himself hath said, It were no hard matter to make a
'Reconciliation, if a Wise man had the handling of it. But I ve-
'rily believe, that as the State of Papacy stands, a far wiser man than
'he cannot reconcile us, without the loss of our Religion. For
'the Pope being fastned to his Errors, even by his Chair of Inerra-
'bility, he sits still unmoved, and so we cannot meet, except we
'come wholly to him. A man standing in a Boat tyed to a Rock,
'when he draws the rope, doth not draw the Rock to the Boat, but
'the Boat to the Rock. And *Sancta Clara* doth (in this somewhat
'honestly) confess it; for he saith, that he dealt in this way of
'Treaty, not to draw the Church to the Protestants, but the Prote-
'stants to the Church.

'A third way is a way of Violence. This Violence they exer-
'cise partly by Secular Arms, and partly Priestly Arms, which
'they call Spiritual: for Secular Arms, we have their own con-
'fession, that the late War was *Bellum Episcopale*; and we have the
'Papists confession, that it was *Bellum Papale*; for in their motives
'they